

Order Denying Supplementation Record-limit ruling

On March 5, 2025, A.R.M.’s motion to add T.R.’s February 20 declaration to the administrative record is denied. The declaration postdates the Board’s January 13 order, was not offered or admitted at the merits hearing, and was not considered by the immigration judge or Board. Section 1252(b)(4)(A) requires decision of this petition on the administrative record on which the removal order was based. Rule 16(b) correction of an omission does not convert later-created material into that record.

The proffer may remain visible on the appellate docket as the document whose treatment was litigated, but it shall receive no AR label and shall not be cited as agency evidence in merits briefing. The court does not decide whether T.R.’s account is true, whether it could support another agency procedure, or whether circumstances have changed. Those questions are outside this record-composition ruling.

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Limits and disposition

Disposition of the supplementation motion is DENIED. This order is separate from the order granting correction of the admitted P-7 declaration. P-7 existed before the hearing and was omitted from transmission; T.R.'s declaration arose after the Board order and was never agency evidence. Resolving those documents differently follows their distinct provenance and does not express inconsistent views about credibility or relevance.

The parties shall use the corrected AR pages for factual propositions about what the agency considered. Appellate pages may be cited for motions, orders, filing dates, and other court proceedings, but the proffer itself supplies no basis for reviewing the January 13 merits determination. The court leaves all properly preserved CAT and review-standard questions for briefing and serves this order on both parties on March 5, 2025.